

CIVIL LAW & MOTION CALENDAR – Hon. Cynthia P. Smith, Dept. A (Historic Courthouse) at 8:30 a.m.

Jesus Rafael Gonzalez Cruz et al v. Nicholas Patrick Essig et al

25CV001675

MOTION TO BE RELIEVED AS COUNSEL

TENTATIVE RULING: The Motion is GRANTED.

The moving party failed to include in the notice of this motion proper notice of the Court's tentative ruling system as required by Local Rule 2.9. Moving party is directed to immediately provide, by telephone call AND email, the missing notice to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

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Andra Watson v. Amazon.com Services, LLC

25CV002136

DEFENDANT AMAZON.COM SERVICES LLC'S MOTION TO COMPEL FURTHER RESPONSES AND REQUEST FOR SANCTIONS IN THE AMOUNT OF \$7,143.50

TENTATIVE RULING: The motion is GRANTED IN PART. Plaintiff Andra Watson is ordered to serve, within 14 calendar days of Notice of Entry of the instant order, a further response to RFP No. 16, limited, however, to "DOCUMENTS sufficient to identify (by name, case number, and court) any other lawsuit and/or administrative action commenced on or after January 1, 2016, in which WATSON alleges damages in the form of emotional injury, depression, pain, discomfort, fatigue, and/or anxiety." Mr. Watson shall also produce documents responsive to the request, as limited, within the same period. The request by Defendant Amazon.com Services, LLC (Amazon) for an award of monetary sanctions is DENIED. Amazon is directed to serve and file a Notice of Entry of the instant order.

The moving party failed to include in the notice of this motion proper notice of the Court's tentative ruling system as required by Local Rule 2.9. Moving party is directed to immediately provide, by telephone call AND email, the missing notice to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

Amazon moves, pursuant to Code of Civil Procedure sections 2031.310, 2023.010, and 2023.030, and California Rules of Court Rules 3.1345 and 3.1348, for an order compelling Plaintiff Andra Watson "to serve verified and complete responses within 14 days" to Defendant's Request for Production of Documents to Plaintiff, Set One, Request No. 16 (RFP No. 16).

(Notice of Motion at 2:3-10.) Defendant also seeks an award of monetary sanctions against Plaintiff and his counsel of record, jointly and severally, in the sum of \$7,143.50. Amazon so moves on grounds that “Plaintiff served an evasive and incomplete response to RFP No. 16, interposing boilerplate objections and unilaterally narrowing the temporal scope of the request without any basis or agreement from Defendant.” (*Id.* at 2:18-20.)

RFP No. 16 seeks “DOCUMENTS sufficient to identify (by name, case number, and court) any other lawsuit and/or administrative action involving WATSON FROM January 1, 2016 to the present.” (Separate Statement at 2:5-7 (Sep. St.).)

The Court finds that Amazon has shown good cause, but for only a subset of the requested documents. (See (Code Civ. Proc., § 2031.310, subd. (b)(1) [“A motion [to compel further response to a request for production of documents] shall . . . set forth specific facts showing good cause justifying the discovery sought by the demand”].) Amazon argues that “Plaintiff alleges damages including emotional injury, depression, pain, discomfort, fatigue, and anxiety. Any prior lawsuit or administrative action, including any personal injury action filed within the time period specified, is relevant to the existence, nature, and extent of Plaintiff’s claimed injuries and whether such injuries predate Plaintiff’s employment with Defendant. Defendant is entitled to explore whether and to what extent Plaintiff’s alleged damages existed prior to his employment with Defendant.” (Sep. St. at 2:28-3:5; see also Support Memo at 7:17-24.)

The argument has merit. It does not, however, constitute good cause for the breadth of the request. Rather, the Court finds that it is sufficient to show good cause for discovering documents that identify other lawsuits and/or administrative actions in which Mr. Watson alleged damages in the form of emotional injury, depression, pain, discomfort, fatigue, and/or anxiety.

Mr. Watson objected to the request on grounds that it was overbroad. (See Sep. St. at 2:9-12.) Mr. Watson argues, through the Opposition, that “If Defendant wanted discovery limited to prior proceedings involving physical injuries, emotional distress, disability, workers’ compensation, employment, wage loss, or similar damages issues, it could have drafted a request saying so. It did not. Instead, it served a request broad enough to encompass entirely unrelated legal matters, then moved to compel after Plaintiff objected that the request was overbroad and irrelevant as phrased.” (Opposition at 4:19-24.) The Court agrees.

Mr. Watson also argues that the request is overbroad in seeking documents relating to a ten-year period. Through his response, he limited the request to a five-year period.

Mr. Watson fails to persuade the Court that this limitation is appropriate; particularly in light of the fact that the request is limited to documents sufficient to identify any litigation and/or administrative actions. As Mr. Watson notes, “RFP No. 16 reaches back to January 1, 2016, five (5) years before the events giving rise to this action.” (Opposition at 4:25-26.) The Court finds good cause for discovery of any litigation and/or administrative actions that were filed in the five years preceding the alleged events.

However, the Court finds the request vague and ambiguous regarding the temporal limitation; It is not clear whether the ten-year period refers to the creation of the document, the filing of the litigation/administrative action, or the pendency of the litigation/administrative action.

Based on the foregoing, the Motion is GRANTED IN PART. Mr. Watson shall, within 14 calendar days of Notice of Entry of the instant order, provide a further response to RFP No. 16, limited, however, to “DOCUMENTS sufficient to identify (by name, case number, and court) any other lawsuit and/or administrative action commenced on or after January 1, 2016, in which WATSON alleges damages in the form of emotional injury, depression, pain, discomfort, fatigue, and/or anxiety.” Mr. Watson shall also produce documents responsive to the request, as limited, within the same period.

With exceptions having no apparent relevance here, “the court shall impose a monetary sanction . . . against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel further response to a demand, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., § 2031.310, subd. (h).)

While the Court ultimately agrees that Amazon is entitled to discover the information over the full ten-year period, it does not find that Mr. Watson’s position, that a five-year period is sufficient, was without substantial justification. The Court finds that both periods are, somewhat, arbitrary. It further finds that the likelihood that a preexisting condition remains relevant diminishes with the age of the initial diagnosis.

Moreover, the Court finds that the imposition of sanctions, here, would be unjust. As noted above, the Court finds merit in Mr. Watson’s objection that RFP No. 16 was overbroad. It also strikes the Court that interrogatories would be a much more effective means of obtaining the sought-after discovery (“identify (by name, case number, and court) of . . . other litigation and/or administrative actions”). The use of requests for production for this purpose, to some extent, invites unnecessary squabbling over whether Mr. Watson is in possession, custody, and/or control of such documents.

Based on the foregoing, Amazon’s request for an award of monetary sanctions is DENIED.

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Vladimir Privalov v. Villa Zinfandel LLC et al

26CV000675

DEMURRER TO PLAINTIFF’S COMPLAINT

TENTATIVE RULING: The Demurrer is SUSTAINED. Plaintiff is granted 10 days’ leave from notice of entry of order to amend. (See Rules of Court, rule 3.1320(g).) Defendant is directed to provide notice of entry of order.